

WENINGER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2870
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3727, Arizona Revised Statutes, is amended to
3 read:

4 13-3727. Unlawful residency; persons convicted of criminal
5 offenses; exceptions; preemption; classification

6 A. It is unlawful for a person who has been convicted of a
7 dangerous crime against children as defined in section 13-705, or who has
8 been convicted of an offense committed in another jurisdiction that if
9 committed in this state would be a dangerous crime against children as
10 defined in section 13-705, and who is required to register pursuant to
11 section 13-3821 to:

12 1. If the person is classified as a level three offender pursuant
13 to section 13-3825, reside within one thousand feet of the real property
14 comprising any of the following:

15 (a) A private school, as defined in section 15-101, or a public
16 school that provides instruction in kindergarten programs and any
17 combination of kindergarten programs and grades one through eight.

18 (b) A private school, as defined in section 15-101, or a public
19 school that provides instruction in any combination of grades nine through
20 twelve.

21 (c) A child care facility as defined in section 36-881.

22 2. Knowingly establish a residence and reside within one thousand
23 feet of the real property on which the person's former victim resides.

24 3. Establish a residence and reside within one thousand feet of the
25 real property on which the person's former victim resides.

26 B. Subsection A, paragraph 1 of this section does not apply to any
27 of the following:

1 1. A person who establishes the person's residence before
2 September 19, 2007 or before a new school or child care facility is
3 located.

4 2. A person who is a minor.

5 3. A person who is currently serving a term of probation.

6 4. A person who has had the person's civil rights restored pursuant
7 to chapter 9 of this title.

8 5. A person who has not been convicted of a subsequent offense in
9 the previous ten years, excluding any time the person was incarcerated in
10 any federal, state, county or local jail or prison facility.

11 C. Subsection A, paragraphs 2 and 3 of this section do not apply
12 to:

13 1. A person who is required to register pursuant to section
14 13-3821, subsection A, paragraph 19.

15 2. A person who receives written consent to establish the residence
16 from the victim or, if the victim is a minor, from the parent or guardian
17 of the minor unless the parent or guardian of the minor is the person who
18 was convicted.

19 D. It is a defense to a prosecution for a violation of subsection
20 A, paragraph 3 of this section if the person established the residence
21 without knowledge that the victim resided within one thousand feet, the
22 person moved within thirty days after receiving actual knowledge of the
23 victim's residence and the person did not have contact with the victim
24 during that thirty-day period.

25 E. IT IS UNLAWFUL FOR A PERSON WHO IS [CONVICTED ON OR AFTER
26 JANUARY 1, 2027, WHO IS] REQUIRED TO REGISTER PURSUANT TO SECTION 13-
27 3821[;] [AND] WHO IS CLASSIFIED AS A LEVEL TWO OR LEVEL THREE OFFENDER
28 PURSUANT TO SECTION 13-3825 [AND WHO IS ON PROBATION OR COMMUNITY
29 SUPERVISION] TO RESIDE [IN A SINGLE-FAMILY DWELLING] WITH ANOTHER PERSON
30 WHO IS REQUIRED TO REGISTER PURSUANT TO SECTION 13-3821. THIS SUBSECTION
31 DOES NOT APPLY IF [ANY OF THE FOLLOWING APPLIES:

32 1.] THE PERSONS ARE LEGALLY RELATED BY BLOOD, MARRIAGE OR ADOPTION.

33 [2. THE SINGLE-FAMILY DWELLING IS A COMMUNITY REENTRY CENTER THAT
34 IS OPERATED BY THE STATE DEPARTMENT OF CORRECTIONS AND THAT COMMENCED
35 OPERATION ON OR BEFORE JANUARY 1, 2026.

36 3. THE SINGLE-FAMILY DWELLING IS A CERTIFIED BEHAVIORAL HEALTH
37 RESIDENTIAL FACILITY THAT IS SUBJECT TO THE OVERSIGHT OF THE DEPARTMENT OF
38 HEALTH SERVICES THAT COMMENCED OPERATION ON OR BEFORE JANUARY 1, 2026.

39 F. IT IS UNLAWFUL FOR A PERSON WHO WAS CONVICTED ON OR BEFORE
40 DECEMBER 31, 2026, WHO IS REQUIRED TO REGISTER PURSUANT TO SECTION 13-
41 3821, WHO IS CLASSIFIED AS A LEVEL TWO OR LEVEL THREE OFFENDER PURSUANT TO
42 SECTION 13-3825 AND WHO IS ON PROBATION OR COMMUNITY SUPERVISION TO RESIDE
43 IN A SINGLE-FAMILY DWELLING WITH ANOTHER PERSON WHO IS REQUIRED TO
44 REGISTER PURSUANT TO SECTION 13-3821. THIS SUBSECTION DOES NOT APPLY IF
45 ANY OF THE FOLLOWING APPLIES:

46 1. THE PERSONS ARE LEGALLY RELATED BY BLOOD, MARRIAGE OR ADOPTION.

1 2. THE SINGLE-FAMILY DWELLING IS A COMMUNITY REENTRY CENTER THAT IS
2 OPERATED BY THE STATE DEPARTMENT OF CORRECTIONS AND THAT COMMENCED
3 OPERATION ON OR BEFORE JANUARY 1, 2026.

4 3. THE SINGLE-FAMILY DWELLING IS A CERTIFIED BEHAVIORAL HEALTH
5 RESIDENTIAL FACILITY THAT IS SUBJECT TO THE OVERSIGHT OF THE DEPARTMENT OF
6 HEALTH SERVICES AND THAT COMMENCED OPERATION ON OR BEFORE JANUARY 1,
7 2026.]

8 ~~F.~~ ~~[F.]~~ ~~[G.]~~ Notwithstanding any other law and as a matter of
9 statewide concern, a county, city or town shall not enact an ordinance
10 that provides for distance restrictions greater than those found in this
11 section.

12 ~~F.~~ ~~[G.]~~ ~~[H.]~~ For the purposes of this section, measurements shall
13 be made in a straight line in all directions, without regard to
14 intervening structures or objects, from the nearest point on the property
15 line of a parcel containing the person's residence to the nearest point on
16 the property line of a parcel containing a child care facility or a school
17 or on which the person's former victim resides.

18 ~~G.~~ ~~[H.]~~ ~~[I.]~~ A person who violates this section is guilty of a
19 class 1 misdemeanor, except that a person who commits a second or
20 subsequent violation of subsection A, paragraph 2 or 3 of this section is
21 guilty of a class 6 felony.

22 Enroll and engross to conform

23 Amend title to conform

JEFF WENINGER

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